

Credit Arrangement Letter

Date -19 may 2022
CAL91834663756

To,

Jiyana Creation

GROUND FLOOR SERVEY NUMBER 127 5 159 2 BLOCK NO 235 HOLIWALA INDUSTRIAL ESTATE
ROAD NO 19 VANZ SACHIN Surat-

Dear Sir/s:

We are pleased to inform you that ICICI Bank Limited ("ICICI Bank" or "Bank") has, at your request, sanctioned working capital facilities ("Facilities") to you upto overall limits not exceeding in the aggregate amounts specified below and more particularly detailed in the Annexure hereto :

Facility	Total Limit (In Mn)
Overdraft	1.00
Term Loan	7.50
TOTAL	8.50

The aforesaid facilities can be availed through the account(s) with ICICI Bank and are subject to the terms and conditions set out in the Annexure hereto and the conditions contained in the documents to be executed in relation thereto.

As fees for Appraisal carried out by the Bank, you are called upon to pay one-time non-refundable processing fee equivalent to 0.30% (exclusive of GST and statutory levies, if any) by way of a cheque / Demand Draft payable favouring ICICI Bank Limited" and / or such other mode as may be acceptable to ICICI Bank

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Please note that this communication should not be construed as giving rise to any binding obligation on the part of ICICI Bank unless the Bank receives duplicate copy of this Letter, duly signed in token of acceptance, within 150 days from the date of sanction i.e. 26 September 2022 and unless agreements / documents are signed / executed in respect of the Facilities within 150 days from the date of sanction i.e. 26 September 2022, the Offer shall automatically lapse without any further communication from the Bank, unless the validity of the Offer is expressly extended / revived by the Bank in writing.



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The Bank without assigning any reason reserves the right to not disburse any Facilities partially or fully and the Borrower / guarantors shall not have any claim against the Bank for such non disbursement. Further, the disbursement of the Facilities is contingent upon (a) positive CIBIL report of the Borrower and / or any of its Directors; (b) the Borrower and and/or any of its Directors have not been declared as a wilful Defaulter or Non-Cooperative Borrower; (c) the Borrower's account has not been classified and reported to RBI as Special Mention Account 1 or 2.

The acceptance of this Credit Arrangement Letter by the Borrower shall also constitute that: The Bank, its group companies, agents / representatives would be entitled to provide the Borrower its Promoters /directors / Partners /its employee's information on various products, offers and services through any mode (including through telephone calls / SMS / emails). We agree as a pre-condition of the Credit Facility(ies) granted to us by the Bank that in case we commit default in repayment of any or some or all our dues as per the terms and conditions set out in the Credit Facility Agreement /Credit Arrangement Letter and or other document(s) on their respective due dates as specified in the said documents, the Bank and or the Reserve Bank of India will have an unqualified and unfettered right to disclose or publish the name of the company/firm/unit and their directors/partners/proprietor as a defaulter in such a manner and through such medium as the Bank or Reserve Bank of India in their absolute discretion may deem fit. We also agree and understand that Bank may exchange any information relating to our firm/company with the corporate and with regulatory authorities/rating agencies/credit bureau. We also agree that it will at the discretion of the Bank to decide our operative limit within the sanctioned limit from time to time and disbursement of the limit will be at the discretion of the Bank.

Yours faithfully,

(Authorised Signatory)

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Approved and accepted by the Borrower : Jiyana Creation

Date : _____

Signature(s) _____

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SECURITY TEMPLATE: -

Above credit facilities shall be secured by:



1	Exclusive charge in favour of the Bank by way of hypothecation of the Company's entire stocks of raw materials, semi-finished and finished goods, consumable stores and spares and such other movables including book-debts, bills whether documentary or clean, outstanding monies, receivables, both present and future, in a form and manner satisfactory to the Bank. - for OD facility
2	Exclusive charge by way of hypothecation on all the firm's movable fixed assets, both present and future, save and except vehicles and other assets specifically financed by other financiers. - for TL facility
3	Exclusive charge by way of equitable mortgage, in a form and manner satisfactory to the Bank, on the properties as described in the table below- Annexure-I and having aggregate value of Rs. 38.11 million (from the same Rs 26.66 mn to be kept for Monu Silk Mills and Rs 11.44 mn to be kept for Jiyana Creation).
4	Unconditional and irrevocable personal guarantee(s) of 1. Omprakash Gupta residing at 601, Sun Stuti Apartment, Near G D Goenka School, Canal Road, Surat -395007 2. Bimla Gupta residing at 601, Sun Stuti Apartment, Near G D Goenka School, Canal Road, Surat -395007 3. Sandeep Gupta Shah residing at 601, Sun Stuti Apartment, Near G D Goenka School, Canal Road, Surat -395007 (Certificate of Chartered Accountant for net worth with assets & liabilities to be obtained upfront wherein total net worth should not be less than Rs. 15.00 Mn as on 31/03/2021) Unconditional and irrevocable corporate guarantee of 1. M/s Monu Silk Mills having registered address at a-2, 107, Regent textile market, Ring road surat-395002 (Certificate of Chartered Accountant for net worth with assets & liabilities to be obtained upfront wherein total net worth should not be less than Rs. 49.80 Mn as on 31/03/2021)
5	Two Recourse Cheques of ICICI Bank Ltd. in favour of ICICI Bank Limited- one for total facility amount and one for two quarters interest assuming full utilization, for total limits of Rs. 8.5 million (TL of Rs. 7.5 Mn and OD limit of Rs. 1.00 Mn). A Debit Authorization letter from the client for recovery of Monthly Installments & recovery of interest as and when debited on monthly basis for Term loan facility.

Annexure -1

Type	Location	Area in Sq ft	Total value (in Mn)	Available for BLG - Jiyana
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				Creation
Commercial	- "Shop No 107, Ug Floor, Regent Textile Market, Shop No 107, Ug Floor, Regent Textile Market, Beside Ambaji Market, Ring Road, Surat "	000	38.11	11.44

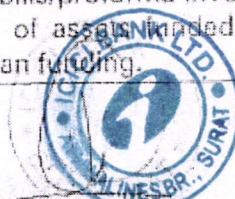
Facility Wise Details & TERMS and CONDITIONS

Facility Name: Term Loan (Fresh) - A - TUF SUBCIDY SCHEME

Term & Condition Name	Term & Condition Description				
Proposed Limit ("Limit")	Rs. 7.5 Mn				
Existing Limit	NA				
Project Cost	Total Project cost is Rs. 10 Mn				
Date of Commencement of Commercial Operation	1 st August, 2022 (Machinery has already been ordered from China and the same is expected to be installed by Jul-22)				
Margin	25% of Total Plant & Machinery				
Last date of drawal	31 st July, 2022				
Draw down/tranche	Draw down under the facility will be subject to a written request / notice of two business days in advance.				
Tenor/Repayment schedule	5 years including moratorium period of 6 months (from the first date of disbursement to last repayment date)				
	Principal amount of each tranche is to be repaid within 54 months from the date of first disbursement Amount is to be repaid in equal monthly installments commencing from 1st day after 6 months of first disbursement.				
Moratorium	6 Months				
Disbursement of term loan	The details of the project/expansion financed by ICICI Bank Term Loan is as follows:				
	Cost of Project	Amount (Rs. In Mn)	Margin %	Less: Margin(Rs. In Mn)	Facility proposed(Rs. In Mn)
	Machinery	10.00	25%	2.5	7.5
Payment in relation to above machineries will be directly made to the suppliers against bills/proforma invoices provided (photocopy would not be accepted) of assignment shall be obtained and kept on record for term loan funding.					

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Interest payment frequency	Interest would be payable monthly, on the last date of each month
Interest calculation	Interest will be calculated on 365 day basis in respect of rupee loans.
Front end fee	Nil
Prepayment	The Applicant shall not, without the prior approval of ICICI Bank (which approval may be given subject to prepayment premium of 4% on the Facility/ies amount and such terms and conditions as may be stipulated by ICICI Bank including payment of any charges, plus applicable taxes or other statutory levy), prepay the outstanding principal amounts of the Facility/ies in full or in part, before the Due Dates. Where any of the Facility/ies are closed by way of balance transfer/takeover by any other bank or financial institution during the tenor of the Facility/ies, a prepayment premium of 4% shall be charged on the amount of the Facility/ies taken over by the other bank/financial institution. For any prepayment / foreclosure of the Facility/ies, the Applicant shall provide to ICICI Bank a prior notice of 30 days specifying the amount to be prepaid and the date of prepayment.
Special conditions	1. The company shall furnish bankers letters from the existing charge holders before disbursement. Not Applicable

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2. The company shall maintain Debt Service Coverage Ratio of 1.25 at all times during the currency of the term loan.
3. ICICI Bank shall have the right to conduct a review of the Project on or before the completion of the Project.
4. The Borrower agrees that if, however, as a result of such review, ICICI Bank determines that the Borrower has not implemented/nor is likely to implement the Project within the Project Cost and/or in accordance with the Financing Plan and/or the Borrower has not commenced/nor is likely to commence commercial production by the Completion Date, ICICI Bank shall have the right to revise the aforesaid repayment schedule and stipulate such additional conditions (including strengthening of management set up, change in means of financing, raising of additional equity capital/other interest-free unsecured funds from the Promoters) as ICICI Bank in its absolute discretion deem fit and to require the Borrower to take such measures as may be stipulated by ICICI Bank in the light of the revised cost of the Project/means of financing/date of commencement of commercial production.
5. The Borrower agrees that unless otherwise agreed to by ICICI Bank, the Loan would continue to be repayable on demand until the Borrower complies with the stipulated terms and conditions to the satisfaction of ICICI Bank and commences commercial production by the Completion Date. Further, during the implementation period of the Project, the Loan shall be repayable on demand being made by ICICI Bank at any time. However, the project implementation being on schedule, ICICI Bank shall not recall the loan during the implementation stage of the project.
6. If the lender finds that the profitability and the cash flow and other circumstances so warrant, the lender may, on previous intimation to the borrower require the borrower to prepay the loan on dates earlier than the dates set out in the repayment schedule and also to increase the amount of the installment of the repayment.
7. Upon such compliance of the conditions and commencement of commercial production the Borrower shall repay the Loans in accordance with the repayment schedule as may be stipulated by ICICI Bank, which repayment schedule shall be final and binding on the Borrower.
8. The Borrower agrees that ICICI Bank shall have the right to review the cost of the project before the final disbursement of the Loan. Pending completion of the review, the Borrower shall obtain prior approval of ICICI Bank for utilizing the amount of the Loans equivalent to the contingency provision in the cost of the Project.
9. The Borrower shall satisfy ICICI Bank that the physical progress as well as expenditure incurred on the Project are as per the original schedule. To this end, the Borrower agrees and undertakes to furnish to ICICI Bank such information and data as may be required by ICICI Bank.

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10. The Borrower shall satisfy ICICI Bank that it has appointed technical, financial and executive personnel of proper qualifications and experience for the key posts and that its organizational set-up is adequate enough to ensure smooth implementation and operation of the project.
11. The Borrower shall constitute a project management committee of its (directors/ executives) to the satisfaction of ICICI Bank for the purpose of supervising and monitoring the progress in the implementation of the project. The committee shall be responsible for the management of the project during construction period including civil tendering, placement of orders for supply of plant and machinery and other assets and monitoring of the implementation of the project.
12. If the Borrower fails to meet its obligation in paying interest and/or installment or installments and/or other moneys payable to ICICI Bank, ICICI Bank shall be entitled to appoint a nominee on the Management of the Borrower during the currency of ICICI Bank assistance.
13. The Borrower shall offer to ICICI Bank the first right of refusal for entry into the Working Capital consortium of the Borrower for the incremental working capital needs arising out of the project. The above commitment would be subject to the agreement between the Borrower and ICICI Bank on the commercial terms for the aforesaid businesses.
14. The Borrower shall not undertake any new project or expansion without prior approval of ICICI Bank during the currency of ICICI Bank assistance.
15. The Borrower shall not raise any term loans/debentures, incur major capital expenditure or make any investments either directly or through its subsidiaries, without the prior written approval of ICICI Bank during the currency of the Loan.
16. The Borrower shall not invest/lend/extend advances to group or subsidiaries companies without prior written approval of ICICI Bank.
17. The Borrower shall not issue corporate guarantee on behalf of its subsidiaries or group companies without prior written approval of ICICI Bank.
18. In the event of default committed by the Borrower in complying with the provisions of the Loan Agreement to be entered into by the Borrower for availing the present facility, the same shall be deemed to be a default committed by the Borrower under any Loan Agreement / Facility Agreement entered into by the Borrower for availing any other facility / facilities.
19. In the event of default committed by the Borrower under any Loan Agreement / Facility Agreement entered into by the Borrower for availing any other facility / facilities, the same shall be deemed to be a default committed by the Borrower under the provisions of the Loan Agreement to be entered into by the Borrower for availing the

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	present facility. 20. The Borrower shall undertake that during the currency of ICICI Bank's assistance, it shall not without obtaining the prior written consent in writing of ICICI Bank, make any payments to the redemption of its Preference Share Capital, if it fails to meet its obligations to ICICI Bank under any facility extended by ICICI Bank, so long as it is in such default. - Not Applicable 21. The Borrower shall obtain and maintain comprehensive insurance cover for the assets of the Borrower during the tenor of the facility, to the satisfaction of ICICI Bank. 22. ICICI Bank reserves the right to stipulate such additional conditions in its sole discretion prior to the disbursement of its above-mentioned committed amount. 23. ICICI Bank shall have right to sell, assign, transfer or otherwise dispose-off or any part of rupee term loan at any time. 24. In case any other lender(s) impose any condition(s) not included herein or in any case any other term stipulated by any such lender(s) is more favorable to them than the aforesaid terms stipulated by ICICI Bank, such of those conditions as may be considered necessary by ICICI Bank, in its discretion, shall apply to the aforesaid assistance as if the Borrower had specifically agreed to such conditions. 25. The Borrower shall furnish an undertaking that during the currency of the Loan, it shall not without obtaining the prior written consent of ICICI Bank, declare any dividend on its share capital, in excess of the rate stipulated in the Rupee Loan Facility Agreement nor declare dividend on its share capital, if it fails to meet its obligations to pay interest and/or installment or installments and/or other monies payable to ICICI Bank so long as it is in such default. - Not applicable. 26. The Borrower shall furnish quarterly progress report on the status of implementation of the Project. 27. The Borrower shall furnish an auditors certificate on the utilization of funds for the project on a quarterly basis. - Not applicable. 28. The company shall maintain the following ratios during currency of this loan: - FOR JIVANA CREATION 1. Total debt/Net Cash Accruals not to exceed - 4 times Bhola Gupta 2. Total debt/Tangible net worth not to exceed - 3 times PROPRIETOR 3. Fixed asset coverage ratio not to fall below - 1.33 times 4. Debt service coverage ratio not to fall below - 1.25 times All financial covenants will be monitored at the time of AQR/Renewal.
Event of Default	1. Delay in payment of interest/installment 2. Delay in DCCO 3. Non-compliance of Financial covenants (to be in line with Program norms) Usual and customary for financings of this nature including, but not limited to, the following: 1) Cancel undrawn commitments; 2) Accelerate the Facility and demand immediate repayment of all amounts due under the Facility; 3) Enforcement of Security and/or Invocation of Additional Comfort;
Consequences of Event of Default	

	4) Right to Convert at their option whole or part of the outstanding amount of the Facility into fully paid up equity shares of the Borrower as per applicable laws. 5) Levy of default interest; 6) Issue notices to the Account Bank for the purposes of drawing on the balance in the trust and retention accounts; 7) Exercise any other right that the Lender may have under the Financing Documents or under the Indian Law; 8) Lenders shall have the right to appoint a Nominee Director and/or Observer (not exceeding one) who shall not be liable to retirement or rotation and the Board of Directors of the Borrower shall have no power to remove the same as long as the default continues. 9) The Lenders and/or the Reserve Bank of India and / or the Credit Information Bureau (India) Limited will have an unqualified right to disclose or publish the name of the Borrower and its Directors as defaulters in such manner and through such medium as the RTL Lenders or the Reserve Bank of India or Credit Information Bureau (India) Limited in their absolute discretion may think fit.
Project Monitoring	a) The Borrower shall satisfy the Lenders that the physical progress of the Project as well as expenses incurred are as per original schedule. In respect of any deviations from the same, the Borrower shall suitably notify the Lenders/Lenders Engineer with justification for the same. The Borrower shall furnish quarterly reports to the Lenders Agent/Lenders Engineer giving details on physical progress of the Project vis-a-vis Project implementation schedule, status of statutory clearances, expenditure so far incurred on the Project and means of financing thereof including own contribution brought in, duly certified by a Chartered Accountant as well as compliance of other lending conditions. b) The facilities of the Borrower shall be inspected by the Lenders officer/authorized representative at quarterly intervals or at such prior frequency as decided by the lenders. c) The Lenders/Lenders Agent shall have the right to conduct a review of the Project at any stage before or after commencement of commercial operations and the Borrower shall facilitate the same and bear all costs in relation to the same.
Default Rate	Interest on overdue amounts will be charged at Documented Rate + 6% p.a. plus any other applicable charges payable monthly
Documentation	All documentation to be in form and substance acceptable to all parties involved in the transaction and as may be required by the Lender(s). In addition to the terms and conditions contained in this Term Sheet, the final documentation will contain other customary/additional stipulation/clauses including but not limited to Unconditional Cancellability, Basel II clause, Information Covenants, Affirmative/Negative Covenants, Financial Covenants, Governing law, Jurisdiction, Undertakings, RBI disclosure norms, Representation & Warranties, Indemnity, Increased cost clause(s), IFC, OFAC (if required), MAE, MAC, Indemnity, taxation etc. as applicable.
Governing law and jurisdiction	The Borrower agrees to the jurisdiction at Surat. However, lenders shall have a right to proceed at any other appropriate jurisdiction as well.
Interest	The rate of interest for each drawal of the Facility will be stipulated by the Bank at the time of disbursement of each drawal, which shall be sum of the Repo Rate * + "Spread per annum, plus applicable statutory levy, if any ("Interest Rate").

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	The applicable Repo Rate shall be the rate prevailing one Business Day preceding the date of each drawal. As on date the Repo Rate is 4.40% and Spread is 3.3%. “Repo Rate” or “Policy Repo Rate” means the rate of interest published by the Reserve Bank of India (“RBI”) on the RBI website from time to time as Repo Rate or Policy Repo Rate. The Repo Rate component of the Interest Rate for all tranches shall be reset after every 3 months following the date on which the Facility is first disbursed, as a sum of Repo Rate + “Spread”, plus applicable statutory levy, if any. The applicable Repo Rate shall be the rate prevailing one Business Day preceding the reset date. * * * Illustration: For first disbursements made on October 5 2019 the first reset date will be January 5, 2020 and thereafter on April 5, 2020 and so on. The Bank shall have the right to modify the reset frequency and reset date from time to time in accordance with the extant RBI Guidelines. The Borrower further acknowledges that Interest Rate may change, upward or downwards, as the case may be, in line with change in the Repo Rate. The Bank may revise the Spread once every three (3) years from the date of the first disbursement, in accordance with the extant RBI Guidelines. Notwithstanding anything contained herein, the Bank reserves the right to reset the Spread at any time upon substantial change in the Borrower’s credit assessment and/ or on account of deterioration in the credit risk profile. Any change in ‘Spread’ would be communicated by the Bank through either: (i) Letter (ii) E-Mail (iii) SMS (iv) Statements of Accounts (v) WhatsApp or any other suitable mode. The Borrower shall be deemed to have notice of changes in the Repo Rate when displayed on the notice board of the Branch or displayed on Banks website (www.icicibank.com) and the Borrower is liable to pay such revised rate of interest
Special condition of term loan	Following undertaking to be provided - 1) Shortfall Undertaking- Not applicable 2) Undertaking for non-disposal of shares from promoters. - Not applicable 3) Management Undertaking. - Not applicable
Interest Payment Frequency	Monthly
Purpose of the facility	Purchase of Machinery
Currency	Rupee facility
Security	As per security template

Facility Name: Overdraft

Term & Condition Name	Term & Condition Description
Proposed Limit ("Limit")	Rs. 1.00 million
Existing Limit	NA
Interchangeability	NA
Sub-limit(s)	NA
Security	As per security template
Validity of facility	Upto 26-04-2023

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Interest	The rate of interest of the Facility stipulated by the Bank shall be sum of the Repo Rate * + "Spread" per annum, plus applicable statutory levy, if any ("Interest Rate") and shall be charged on the principal amount of the Facility remaining outstanding each day. The applicable Repo Rate shall be the rate prevailing one Business Day preceding the date of account opening /limit set-up /renewal. As on date the Repo Rate is 4.40% and Spread is 3.30%. *"Repo Rate" or "Policy Repo Rate" means the rate of interest published by the Reserve Bank of India ("RBI") on the RBI website from time to time as Repo Rate or Policy Repo Rate. The Repo Rate component of the Interest Rate shall be reset after every 3 months following the date of limit set-up /renewal (as applicable), as a sum of Repo Rate + "Spread", plus applicable statutory levy, if any. The applicable Repo Rate shall be the rate prevailing one Business Day preceding the reset date. ** ** Illustration: For account opening /limit set-up /renewal done on October 5 2019 the first reset date will be January 5, 2020 and thereafter on April 5, 2020 and so on. The Bank shall have the right to modify the reset frequency and reset date from time to time in accordance with the extant RBI Guidelines. The Borrower further acknowledges that Interest Rate may change, upward or downwards, as the case may be, in line with change in the Repo Rate. The Bank reserves the right to reset the Spread at any time upon substantial change in the Borrower's credit assessment and/ or on account of deterioration in the credit risk profile. Any change in 'Spread' would be communicated by the Bank through either: (i) Letter (ii) E-Mail (iii) SMS (iv) Statements of Accounts (v) WhatsApp or any other suitable mode. The Borrower shall be deemed to have notice of changes in the Repo Rate when displayed on the notice board of the Branch or displayed on Banks website (www.icicibank.com) and the Borrower is liable to pay such revised rate of interest.
	Interest Payment Frequency
	Monthly
	Purpose of the facility
Working Capital Requirement	

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Operational Terms and Conditions

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Term & Condition Name	Term & Condition Description	PROPRIETOR
Period of sanction	The Facilities shall be valid for the validity period as specified above for each facility, subject to (i) the terms and conditions mentioned herein and in the other documents in relation to the Facilities and (ii) review at periodical intervals wherein the Facilities may be continued / cancelled / reduced, depending upon the conduct and utilization of the Facilities. The	

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	Facilities are repayable on demand.
Insurance	The Borrower shall ensure comprehensive insurance to cover all risks, for the value of the security offered for the Facilities, at all times during the currency of the Facilities. The policies should be either in the joint names of the Borrower and ICICI Bank/security trustee/ lead bank (in case they are acting for all other lenders) or ICICI Bank's/ security trustee's/ lead bank's (in case they are acting for all other lenders) lien should be noted on the policies as first loss payee or endorsee. Any shortfall in the value of insurance cover shall be covered immediately by the Borrower or by ICICI Bank by debiting the Borrower's operative account with ICICI Bank
Inspection	Unit inspection will be conducted at yearly intervals by ICICI Bank's officials. Without prejudice to the above or any provision in the facility agreement, unit inspection, if required, may also be conducted by ICICI Bank's auditors/ chartered accountants, officials of RBI, ICICI Bank's/RBI's authorized agency or any other re-financing agency or any other third party authorized by ICICI Bank. The expenditure in connection with the inspection will be borne by the Borrower.
Default interest	As per the Default Interest Table below
Stock Audit	NA
Valuation charges	Valuation charges of Rs.3,000 Applicable Tax per property, such charges are payable by the applicant(s) upfront on the date of the application form/ disbursement.
Valuation-Inventory- Raw materials, consumable stores, spares.	At cost, current market rates, Govt. controlled rates , Borrower's selling price, whichever is the lowest
Valuation- Inventory- Work in Process	Raw materials at cost plus factory overheads
Valuation- Inventory- Finished Goods	At cost, current market rates, Govt. controlled rates, Borrower's selling price, whichever is the lowest

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Periodicity of submission of information to the Bank- Stock Statement	NA
Periodicity of submission of information to the Bank- Other financial information (OFI)	NA
Periodicity of submission of information to the Bank- Data required for renewal of credit limits	At least 45 days before the expiry of the credit limits
Periodicity of submission of information to the Bank- Audited / unaudited financial statements	Provisionals: within three months from the close of the accounting year. Audited :within six months from the close of the accounting year
Creation of charges	NA
Processing Fee	The borrower will pay one time non-refundable processing fee of Rs.25500 as PF is 0.30%, as per pricing approval provided (exclusive of GST and statutory levies, if any)
Others Conditions	The Borrower represent that it has adopted a suitable hedging policy, approved by its Board of Directors Partners/Proprietor/Trustee/Members, which includes mechanisms to reduce its currency mismatches. The Borrowers hedging policy shall remain in full force and effect and updated from time to time, till all the monies due and payable under the Facility Agreement/ Transaction Documents are fully paid to the satisfaction of the Bank/ Lender. The Borrower shall provide all information as may be required by the Bank/ Lender from time to time in relation to its foreign currency exposures and hedging details in relation thereto. In the event of any change in applicable laws/ regulations (including regulatory/statutory requirements pertaining to provisioning norms and/or risk weightage), the Bank/ Lender shall have the right to recover the cost, in any manner that it deems fit, including by way of revision in spread/applicable rate. FOR JIYANA CREATION
Sole banking arrangements	All other terms and conditions shall be as per General Conditions (GC-I) and the Credit Facility Agreement (CFA) to be executed between the company and ICICI Bank Ltd. PROPRIETOR

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Other Conditions	The Bank at its sole discretion may block/zeroise the drawing power in the account upon non-renewal or non-submission of stock statements.
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Standard Terms and Conditions

Term & Condition Description
Borrower to provide any report / information as may be required.
Borrower shall not avail finance from any other bank/entity for the aforesaid purpose without prior written approval of ICICI Bank.
The Bank at its sole discretion may block/zeroise the drawing power in the account upon non-renewal.
Declaration from customer that funds under the facility will not be used towards purchase of gold in any form, including primary gold, gold bullion, gold jewelry, gold coins, units of gold Exchange Traded Funds (ETF) and units of gold Mutual Funds.
Minimum 90% of turnover to be routed through the ICICI Bank OD account.
Any Change in Constitution of entity/change in registration address shall be done after intimation to ICICI Bank.
Interest payment on unsecured loans shall be subservient to the interest payment to ICICI Bank Ltd.
Valuation of the property offered as collateral to be done once in every three years from the date of last valuation. ICICI Bank may however, revalue the property at any time that it may deem fit.
Facilities approval is valid subject to legal & technical clearance of the property offered as collateral security and shall be done by ICICI Internal technical team/ ICICI approved lawyer.
Funds from this facility shall not be diverted to sister/associate/group concerns during the currency of the ICICI Bank facility & would be used for the purpose for which the same has been availed. Apart from business transactions, there shall be no inter group transactions.
In case utilization of the limits in a quarter (except the quarter during which the limit has been set up) falls below 60% of the sanctioned limits, a commitment fee of 0.5% of the difference between the said 60% and the utilized amount (plus applicable taxes) shall be levied.

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Any default committed by Jiyana Creation shall be deemed to be an event of default by Monu Silk Mills and vice versa. Hence the liability of both the entities shall be joint and several.

The Collateral Security provided for the limit Situated at A- 2,107 Regent Textile Market Ring Road Surat will be marked as the Common collateral for Jiyana Creation and Monu Silk Mills

Non-compliance of any sanction condition will have penal implication of 1%.

"The Security Providers/Borrowers to insure and keep insured at all times during the tenure of the Facility all the properties offered as collateral security to ICICI Bank for the Facility granted by it"

Without prejudice to any of the rights available with the Bank contained in the Transaction Documents or under applicable law, the Bank shall have unconditional right to revise the Spread applicable to any/all Facility, at any time during the subsistence of the Facilities, without giving any prior notice to the Applicant(s), on the occurrence of any of the following:
Deterioration of Creditworthiness

Degradation of any/all Security on account of any reason whatsoever, including but not limited to (i) non-compliance with any applicable laws/regulations and/or with any contractual obligations in relation to any/all Security, (ii) any actual/alleged misrepresentation or fraud jeopardizing any/all Security; Deterioration in the Creditworthiness shall mean and include without limitation, the following events: (i) Downgrade of the rating of the Applicant by a Credit Rating Agency; (ii) Inclusion of the Applicant and/or any of its directors in the RBIs wilful defaulters list; (iii) Closure of a significant portion of the Applicants operating capacity; (iv) Decline in the profit after tax of the Applicant by more than fifteen percent; (v) Any adverse comment from the auditor; and (vi) Any other reason/ event which in the sole opinion of the Bank constitutes or which may constitute deterioration in the creditworthiness of the Applicant.

Funds would be used for the purpose for which the facilities have been availed and funds will not be used for financing, speculation, illegal, litigation or any such purpose.

The Borrower shall open a current account with the Bank on the applicable terms and conditions.

The Borrower shall have exclusive banking relation with the Lender and shall initiate relationships with other banks after seeking consent of the Lender by providing a fortnight prior notice.

Any Legal and Technical Expenses to be borne by the Borrower and would be debited from his limit account after disbursement, to the extent same has not been already charged from the Borrower.

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13 years title search to be done for all the properties prior to disbursement.

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All applicable charges as uploaded on www.icicibank.com for services rendered by ICICI Bank.

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ICICI Bank reserves the right to modify the rates from time to time
Insurance of the stock & property to be provided prior to disbursement.
The above preferred rate of interest / Commission is incumbent upon your shifting of major business and family accounts with us and that ICICI Bank will become your preferred bank for all your personal and business banking needs, Interest rate/ commission will be reviewed from time to time based on overall relationship"
In the event of payment default persisting beyond 90 days, the default interest rate would be increased to document rate + 6% with retrospective effect (i.e., from the date of default)
Document rate means the rate at which the facility was contracted.
In case of any levies / charges such as interest tax are levied on the default interest, such levies / charges shall be collected separately from the borrower in addition to the default interest. This would be as per prevailing standard agreements.
Unless otherwise specifically mentioned, the rates are applicable for all domestic as well as international loans.
"The Borrowers hedging policy shall remain in full force and effect and updated from time to time, till all the monies due and payable under the Facility Agreement/ Transaction Documents are fully paid to the satisfaction of the Bank/ Lender
"The Borrower represent that it has adopted a suitable hedging policy, approved by its Board of Directors Partners/Proprietor/Trustees/Members, which includes mechanisms to reduce its currency mismatches
"The Borrower shall provide all information as may be required by the Bank/ Lender from time to time in relation to its foreign currency exposures and hedging details in relation thereto

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Special Term and Condition

Term & Condition Description

Adjusted Tangible Net Worth including unsecured loans shall be maintained at a level of Rs. 4.8 Mn during the currency of the ICICI bank loan wherein Adjusted Tangible Net Worth shall be

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defined as "Share Capital + Reserves & Surplus(excluding revaluation reserves)+unsecured loans subordinated-intangible assets-advances/investments to/in sister concerns).

The borrower to route at least 90% of turnover through ICICI Bank account.

Client to provide Udyam Registration certificate (URC) prior to disbursement of limit whereby type of Enterprise should be Micro Enterprise. Same to be vetted by local CPG team. RM / RHS to ensure compliance of the same.

The Applicant shall not, without the prior approval of ICICI Bank (which approval may be given subject to prepayment premium of 4% on the Facility/ies amount and such terms and conditions as may be stipulated by ICICI Bank including payment of any charges, plus applicable taxes or other statutory levy), prepay the outstanding principal amounts of the Facility/ies in full or in part, before the Due Dates. Where any of the Facility/ies are closed by way of balance transfer/takeover by any other bank or financial institution during the tenor of the Facility/ies, a prepayment premium of 4% shall be charged on the amount of the Facility/ies taken over by the other bank/financial institution. For any prepayment / foreclosure of the Facility/ies, the Applicant shall provide to ICICI Bank a prior notice of 30 days specifying the amount to be prepaid and the date of prepayment.

The proprietor/ individual borrower shall be required to take a term insurance and the same has to be assigned in the favour of ICICI Bank. The value of the term insurance shall be equal or greater to the facility amount granted to the proprietor/individual borrower.

Details of all identified sister concerns to be obtained on letter head of the firm.

Savings account of Proprietor Bimla Gupta, Spouse of proprietor cum property owner Omprakash Gupta & Son of proprietor Sandeep Gupta to be opened with ICICI Bank before Limit setup. Any waiver to be obtained from ZH Retail.

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Latest quotation/proforma invoice of machineries which is going to be purchased is to be obtained prior to disbursement. Quotation should be with all details of supplier/service provider (Name, Address, GST no. (if applicable)) and with proper details of machinery/service to be provided. RM/RHS to ensure compliance

Self-certified projection to be documented on letterhead of borrowing firm prior to disbursement. RM/RHS to ensure the same.

Quarterly review of topline to be done wherein topline should be in line with the projection. Any variation to be highlighted to sanctioning authority. RM/RHS to ensure the same.

CA Certificate from statutory auditor of the borrower firm in regards to ATNW whereby ATNW should not be less than Rs. 3.50 Mn to be obtained prior to disbursement of limits. RM / RHS to

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ensure the same.

Property insurance for the property given as collateral to be obtained upfront, Stock insurance & machinery insurance to be obtained within 30 days of commencement of business operations.

Manufacturing Visit report is to be documented prior to CAL Numbering, RM/RHS to ensure the compliance the same.

Self certificate for no pending direct tax proceedings or outstanding direct tax dues or notice under Rule 281 of the Second Schedule of the Income Tax Act to be obtained from Mr Omprakash Gupta

NOC to be blocked with sister concern M/s Monu Silk Mills having OD facility with I-bank. RM/RHS to ensure compliance.

NOC/closure letter to be availed for LAP closure in Kotak Mahindra Bank. RM/RHS to ensure compliance of the same.

Default Interest Rates for CC and OD

Sr.no	Nature of default(as applicable)	Reckoning of default interest	Default interest rate (p.a.) payable monthly
1	Non-submission or delayed submission of stock statement	Default interest would be charged from the due date of submission till the date of actual submission <u>Due date of submission is as follows:</u> For single location company - by 7th day of the month; for multiple location company - by 15th day of the month; (for consortium advances - as prescribed by lead bank) or due dates as per sanction terms	FOR JIYANA CREATION <i>Bmle Gupta</i> PROPRIETOR For the first 15 days of delay: Nil Delay > 15 days: 2% *
2	Irregular due to drawings beyond DP/Limit	a) Excess drawings - Over drawing power but within sanctioned limit	6% over the Documented Rate

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		b) Excess drawings over sanctioned limit	
		c) Continuously irregular for more than 45 days under (a) or (b) above	
3	Payment default (in case of foreign currency loans, the foreign currency amount will be converted into equivalent rupee and default interest as mentioned herein will be charged)	Default interest would be charged from the day after of the due date till such time as the default amount is paid	6% over the Documented Rate
4	Insurance	Insurance cover not obtained/not renewed	Nil
5	Non-submission or delayed submission of financial statements	Default interest would be charged from the due date of submission till the date of actual submission	Nil
	• Provisional	Due date of submission is as follows: 3 months from the close of accounting year	FOR JIYANA CREATION Bhmla. Gupta PROPRIETOR

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Bhmla Gupta
PROPRIETOR



	- Audited - Renewal data	6 months from the close of accounting year On expiry of credit limits	
6	Non-submission or delayed submission of OFI or equivalent reports	Default interest would be charged from the due date of submission till the date of actual submission	Nil
7	Non-compliance of sanction terms	Any stipulated security not created, perfection requirements and other formalities not completed and/or sanction terms not complied with	For the first 15 days of noncompliance: Nil Breach continuing beyond 15 days: 1%*
8	Ceiling on default interest	Not applicable	As notified by ALCO from time to time. FOR JIYANA CREATION <i>Bhola Gupta</i>
9	Cross Default	Any default committed by "A" shall be deemed to be an event of default by "B" and vice versa. Hence the liability of both the borrowers shall be joint and several. And/or Any default committed under A program shall be deemed to be an event of default under B program. Any default committed under B program shall be deemed to be an event of	In such event of default, bank is at liberty to recall all the advance of all these companies/concerns. 1% (The rate will be over and above the interest rate of the facility) on the limit amount for the delayed period will be charged for the company/concern other than the company/concern in

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		default under A program. Hence the liability under both the programs shall be joint and several.	default for the default period. All the promoters of these companies will be personally responsible to pay the bank dues owing to all these companies/concerns along with interest
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PSL CLASSIFICATION:

PRIORITY SECTOR	YES
SUB SECTOR CODE FOR WORKING CAPITAL	MIC-MF
SUB SECTOR CODE FOR TERM LOAN	MIC-MF
PROGRAM PREFIX	EC

We agree as a pre-condition of the Credit Facility(ies) granted to us by the Bank that in case we commit default in repayment of any or some or all our dues as per the terms and conditions set out in the Credit Facility Agreement / Credit Arrangement Letter and or other document(s) on their respective due dates as specified in the said documents, the Bank and or the Reserve Bank of India will have an unqualified and unfettered right to disclose or publish the name of the company / firm / unit and their directors / partners / proprietor as a defaulter in such a manner and through such medium as the Bank or Reserve Bank of India in their absolute discretion may deem fit".

We also agree and understand that bank may exchange any information relating to our firm/company with the corporate or/and with regulatory authorities/rating agencies/credit bureau. We also agree that it will at the discretion of the bank to decide our operative limit within the sanctioned limit from time to time and disbursal of the limit will be at the discretion of the bank.

Yours faithfully,

(Authorised Signatory)

Approved and accepted by the Borrower : Jiyana Creation

FOR JIYANA CREATION

Bhmler. Gupta

PROPRIETOR

Date : _____

Signature(s) *Bhmler Gupta*

